



DEPARTMENT OF THE NAVY
NAVAL FACILITIES ENGINEERING SYSTEMS COMMAND
WASHINGTON 1314 HARWOOD STREET SE
WASHINGTON NAVY YARD DC 20374-5018

J&A No. N40080-25-J&A-007

**JUSTIFICATION AND APPROVAL
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION**

1. Contracting Activity.

The requiring activity is Naval Facilities Engineering Systems Command (NAVFAC), Washington, District of Columbia (DC) Area of Responsibility (AOR).

2. Description of the Action Being Approved.

This justification and approval (J&A) seeks authority to increase the contract maximum Not-To-Exceed (NTE) capacity for the Indefinite Delivery Indefinite Quantity (IDIQ) for Multi-Media Environmental Compliance Services, with an Emphasis on Fuel Storage Tanks/Spill, Air and Waste Materials for the NAVFAC Washington DC AOR and US Territories, Contract Number N40080-21-D-0010. This modification will increase the contract capacity by \$10 Million, from \$30 Million to \$40 Million. The single award IDIQ contract was awarded to Bluestone-InterSpec, JV on 15 July 2021.

This increase in the ordering capacity of the current IDIQ contract will ensure that sufficient capacity is available to order known, specific requirements which must be awarded in fiscal year (FY) 25 and 26 and support reasonable potential modifications to such requirements as well as modifications to previously awarded task orders under this contract vehicle. The basic IDIQ contract includes a 5-year ordering period and FAR 52.217-8 Option Period (6-month extension period), with a period of performance ending on 14 January 2027. This action will not extend the period of performance.

3. Description of Supplies/Services.

The primary purpose of the Multi-Media Environmental Compliance Services, with an Emphasis on Fuel Storage Tanks/Spill, Air and Waste Materials, contract is to provide a full range of methods, technologies and environmental support for the Washington DC AOR activities to be in compliance with environmental laws and regulations and meeting budgets and schedules. The work requires preparation of plans/studies, evaluations, surveys, sampling, permit support, assessments, characterizations, training, air quality compliance, waste and materials compliance, storage tank and spill compliance, environmental planning, cultural resource management, biological resources management, and restoration in the NAVFAC Washington AOR to include metropolitan Washington, DC, Maryland and Virginia locations.

This additional capacity requested will be used to meet the demand of projects to ensure compliance with the upcoming ban of Aqueous film-forming foam (AFFF) within the DC AOR

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and hazardous materials remediation projects in support of the Navy Museum objectives, in addition to the increasing expected environmental compliance concerns. The exact amount of future task order awards is unknown for these projects. However, the estimated value of planned FY 25 and 26 projects for EV1 has been provided in section 5. Increasing the contract capacity will allow for time sensitive, mission critical projects described herein to be procured on a sole source basis, in a timely manner.

4. Statutory Authority Permitting Other Than Full and Open Competition.

The statutory authority permitting other than full and open competition is 10 U.S.C. §2304(c)(2), as implemented by FAR 6.302-2 – Unusual and Compelling Urgency. FAR 6.302-2 permits contracting without providing for full and open competition in situations where 1) an unusual and compelling urgency precludes full and open competition, and 2) delay in award of a contract would result in serious injury, financial or other, to the Government.

5. Rationale Justifying Use of Cited Statutory Authority.

The original IDIQ with a NTE capacity of \$30 Million (including \$5 Million option) was competed as 100% Small Business set-aside, and awarded to Bluestone Interspec JV, LLC, on 15 July 2021. The basic IDIQ contract includes a 5-year ordering period and FAR 52.217-8 Option Period (6-month extension period), ending on 14 January 2027.

The IDIQ usage rate is anticipated to increase over FY25 and FY26 due to increasing activity for AFFF compliance projects throughout the Navy and additional use of the contract for hazardous remediation projects from the Naval History and Heritage Command (NHHC.) The AFFF compliance project is to respond increased PFAS requirements in the FY23 and FY24 National Defense Authorization Acts. This work, along with an expected increase in environmental compliance requirements, requires obligation beyond the remaining capacity of the contract to meet future years requirements. These unanticipated and unforeseen requirements in the future portend an accelerated usage of this contract.

Although the total task orders for execution through FY25 and FY26 are unknown, based on the current usage rate of the contract, it is expected that the contract will exceed capacity before the end of the IDIQ expiration date of 14 January 2027.



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The additional capacity requested will be required to execute the critical, mission-essential Environmental Compliance projects focused on Fuel Storage Tanks/Spills, Air and Waste Materials targeted for FY25-26 requirements, with an estimated value of \$17,000,000, along with unknown AFFF and museum hazardous material restoration related projects.

In accordance with FAR 6.302-2(b), increasing the ordering capacity of the IDIQ as described herein is essential to meet NAVFAC Washington AOR's mission requirements and prevent any serious mission or financial injury to the Government, especially relating to PFAS contamination. Completion of work associated with these mission critical projects under the current IDIQ contract is the most practical option available. Bluestone-Interspec JV is capable of performing the work and is familiar with the specialized work to be performed, allowing for greater efficiencies in cost and performance of the work.

If additional capacity is not granted, when the capacity is reached, awards will have to be procured as standalone contracts. This method would not be in the best interest of the Government because of the time and resources to procure project specific contracts. The standalone contracts take up to 14 months to execute.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

Increasing the contract value of the current contract by \$10 Million is the most advantageous way to fulfill the Government's imminent and foreseeable contracting requirements. Competing the projects on a stand-alone basis is not in the best interest of the Government. The administrative effort required to award a new, standalone contract is not cost effective and cannot be completed timely, which impacts the Government's ability to meet mission essential requirements. Failure to award these critical, mission-essential Environmental Compliance projects in a timely manner would result in a severe impediment or mission stoppage. The Navy risks notice of violations and/or fines if the work is not completed rapidly.

As explained herein, procuring requirements through full-and-open competition outside of the IDIQ is neither practical nor achievable, since it will result in delays and substantial project cost increases while also negatively impacting the DON's mission objectives in NAVFAC Washington. In accordance with FAR 6.305, the approved J&A will be posted on SAM.gov within 30 days after award of the contract modification. Synopsis of the proposed requirements will not be published to the SAM.gov contract opportunities website due to applicable exception under FAR 5.202(a)(6), which indicates that orders under indefinite quantity contracts are not required to be synopsized.

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7. Determination of Fair and Reasonable Cost.

The Contracting Officer has determined the anticipated cost to the Government of the supplies/services covered by this J&A will be fair and reasonable, based on market research.

8. Actions to Remove Barriers to Future Competition.

The requiring activity will compete future requirements. Pre-solicitation activities to procure the follow-on contract is scheduled to begin in Q1 of FY27.

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CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS /FUNCTIONAL LEAD CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein, are complete and accurate to the best of my knowledge and belief.

Signature

Name (Printed)

Date

LEGAL SUFFICIENCY REVIEW

I have determined this Justification is legally sufficient

Signature

Name (Printed)

Date

CONTRACTING OFFICER CERTIFICATION

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

Signature

Name (Printed)

Date

ECH IV COMMANDING OFFICER APPROVAL

Upon the basis of the above justification, I hereby approve, as the Commanding Officer, the solicitation of the proposed procurement(s) described herein using other than full and open competition, pursuant to the authority of 10 U.S.C. 2304(c)(2) – Unusual and Compelling Urgency.

Signature

Name (Printed)

Date